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Case Number: 25STCV12454 Hearing Date: June 24, 2026 Dept: 400

(1) MOTION TO COMPEL FURTHER RESPONSES OF
DEFENDANT MOE MOSTASHARI TO SPECIAL INTERROGATORIES, SET ONE

(2) MOTION TO COMPEL FURTHER RESPONSES OF
DEFENDANT MOE MOSTASHARI TO REQUESTS FOR ADMISSION, SET ONE

(3) MOTION TO COMPEL FURTHER RESPONSES OF
DEFENDANT W.L.A. FLAME INTERNATIONAL INC. TO REQUESTS FOR ADMISSION, SET ONE

(4) MOTION TO COMPEL FURTHER RESPONSES OF
DEFENDANT W.L.A. FLAME INTERNATIONAL INC. TO SPECIAL INTERROGATORIES, SET ONE

(5) MOTION TO COMPEL FURTHER RESPONSES OF
DEFENDANT W.L.A. FLAME INTERNATIONAL INC. TO REQUESTS FOR PRODUCTION OF
DOCUMENTS, SET ONE

Relief Requested:

The Court compel
defendants to serve further responses to Plaintiff's first set of special interrogatories,
requests for production of documents, and requests for admissions. Impose
sanctions on defendants for necessitating the motions.

Summary of Action:

Vida Loca

Entertainment LLC initially filed this action on April 29, 2025. After a demurrer
ruling, Plaintiff Giovani Vetironi LLC dba Vida Loca Entertainment (Plaintiff)

filed an amended complaint. On September 12, 2025, Plaintiff filed the operative Second Amended Complaint (SAC) against Defendants W.L.A. Flame International Inc. (Flame), Moe Mostashari (Mostashari), and Does 1 through 20, inclusive, asserting causes of action for: (1) reformation of contract; (2) breach of contract; (3) breach of the implied covenant of good faith and fair dealing; (4) fraud in the inducement; (5) restitution/quasi-contract; (6) intentional interference with prospective economic advantage; and (7) declaratory relief. On April 29, 2026, Flame and Mostashari filed their operative First Amended Cross-Complaint (FAXC) against Plaintiff, asserting causes of action for: (1) declaratory relief; (2) fraud and intentional misrepresentation; (3) negligent misrepresentation; (4) rescission of contract (illegality/fraud/lack of authority); (5) unjust enrichment/restitution; (6) unfair business practices (Bus. & Prof. Code § 17200); and (7) vicarious liability/agency/alter ego.

Plaintiff filed the instant five motions to compel further responses on May 14, 2026.

Mostashari filed his oppositions to the two motions to compel further responses to requests for admission and special interrogatories on June 5 and June 10, 2026, respectively. Plaintiff filed its replies to those oppositions on June 15, 2026.

Flame filed its oppositions to the motions to compel further responses to special interrogatories and requests for production of documents on May 28 and May 29, 2026, respectively. Plaintiff filed its oppositions to those motions on June 2, 2026. Flame also filed an opposition to the motion to compel further responses to requests for admissions on June 4, 2026, but no reply has been filed to that opposition.

Analysis

The Court tenders the following tentative decision in the matter Vida Loca Entertainment LLC v. Moe Mostashari, et al., Los Angeles County Superior Court case number 25STCV12454, set for hearing on November 24, 2025. Plaintiff Giovanni Vetironi LLC dba Vida Loca Entertainment (Plaintiff) moves to compel Defendants Moe Mostashari (Mostashari) and W.L.A. Flame International Inc. (Flame) to serve further responses to Plaintiff's discovery requests. The requests to compel further responses are granted in part and denied in part as stated in this ruling. Plaintiff's request for sanctions are denied given the Plaintiff's failure

to meet and confer in person, by telephone, or videoconference regarding each issue raised in the motions as required by Code of Civil Procedure section 2016.040.

A. Meet and Confer Requirement

Before bringing a motion to compel further responses to a discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration attesting to those efforts. (Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2030.300, subd. (b), 2033.290 subd. (b).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Id., § 2016.040.) A discovery motion need not be denied automatically because the moving parties failed to meet and confer in good faith. (See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 434.)

Plaintiff’s counsel testifies that on March 2, 2026, he emailed defense counsel “a detailed five-page meet-and-confer letter identifying the deficiencies in all six sets of responses and citing Code of Civil Procedure sections 2030.300(b), 2031.310(b), and 2033.290(b).” (Declarations of Alishan A. Jadhavji, filed May 14, 2026 (“Jadhavji Decl.”) ¶ 3; Exh. A – a copy of the meet and confer letter.) Thereafter, the parties’ counsel agreed in writing that defendants will serve supplemental responses by May 6, 2026, and Plaintiff’s deadline to file motions to compel further responses will be May 22, 2026. (Id. ¶ 4.) However, defendants had not served supplemental responses or produced responsive documents by their deadline of May 6, 2026, and before Plaintiff filed the instant motions on May 14, 2026. (Id. ¶ 5.) Therefore, Plaintiff filed the instant motions. (Id. ¶ 6.)

The Court finds that Plaintiff’s meet and confer efforts were insufficient for the following reasons. First, Code of Civil Procedure section 2016.040 (“Section 2016.040”) now requires the meet and confer conference to take place in person, by telephone, or by video conference. Here, counsel only sent a letter. Second, the statute required Plaintiff to attempt to resolve “each issue” presented in the instant motions. With the exception of the motions to compel Flame’s further responses to special interrogatories and requests for production, the Court finds Plaintiff’s counsel’s meet and confer

letter did not address all issues raised in the other motions. Plaintiff argues in reply papers that defense counsel never claimed not to understand which discovery requests were at issue. However, the burden is on the moving party, not the opposing party, to specify the issues that will be raised in the motion and attempt to informally resolve them with the responding party through the meet and confer process. That was not done for all motions.

An insufficient meet and confer conference is not grounds for denying the motion. Therefore, the Court will proceed on the merits as to Plaintiff's request to compel further responses. However, the Court denies Plaintiffs' request for sanctions due to the failure to meet and confer as required by Section 2016.040. The Court finds all other procedural arguments raised by defendants unpersuasive.

B. Legal Standard

A

party may move for an order compelling further responses to discovery if the party deems the responses evasive, incomplete, or contain objections that are without merit. (Code Civ. Proc., §§ 2033.290, subd. (a); 2030.300, subd. (a); 2031.310, subd. (a).)

A

motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Sup.Ct (2002) 95 Cal. App.4th 92, 98.)

A

trial court retains the authority to hear a motion to compel further responses even if the responding party serves supplemental responses after the motion has been filed and before the hearing. (See e.g., Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 408–409 ["If a party provides an untimely interrogatory response that does not contain objections and that sets forth legally valid responses to each interrogatory, the untimely response might completely or substantially resolve the issues raised by a motion to compel responses under section 2030.290. Even in such cases, however, the trial court retains

the authority to hear the motion. (See Cal. Rules of Court, rule 3.1030(a) [“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed”].) Whether a particular response does resolve satisfactorily the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion. The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required,¹⁴ or order the propounding party to ‘meet and confer’ (§ 2030.300, subd. (b)) and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300”].)

C.

Motion to Compel Mostashari to Serve

Further Responses to Special Interrogatories

Plaintiff’s motion initially moved for an order compelling Mostashari to serve further responses to Special Interrogatories (Set One) (“M-SROG”) Nos. 2, 4, 5, 7, 13, 14, 15, 16, 18, and 20. (Notice of M-SROG Motion, p. 2:6-9.) Mostashari served supplemental responses on June 10, 2026 (the “June 10 Responses”). (Opposition to M-SROG Motion, p. 4:18-19; Declaration of defense counsel Negar Tehrani, ¶ 5; Exh. A – a copy of the supplemental responses.) Plaintiff’s reply argues that the June 10 Responses to Nos. 2, 3, 7, 9, 11, 15, 16, 17, 18, 19 and 20 are not code-compliant, and, therefore, the Court should enter an order compelling further responses to those M-SROGs.

The request to compel Mostashari’s further responses to M-SROG Nos. 3, 4, 5, 9, 11, 17, and 19 are denied.

Plaintiff’s motion did not initially move to compel further responses to M-SROG Nos. 3, 9, 11, 17, and 19. In addition, Plaintiff has not argued that the June 10 Responses for M-SROG Nos. 4 and 5 are

insufficient.

Therefore, the request to compel further responses to Nos. 3, 4, 5, 9, 11, 17, and 19 is denied.

Mostashari's responses to M-SROG Nos. 2 and 15 were not code compliant.

No. 2 asked the defendant to state whether he sent a certain text message, while No. 15 asked him to state whether he authorized the issuance of IRS Form 1099-NEC to "Giovani Vetironi LLC." In the June 10 Responses, the defendant claims that he lacks information to either admit or deny those interrogatories.

Code of Civil Procedure section 2030.220 requires: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. [¶] (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. [¶] (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

Mostashari's response that he lacked information to answer M-SROG Nos. 2 and 15 was not accompanied by a statement that he made reasonable and good faith efforts to obtain the information requested in violation of the statute above.

Therefore, the request to compel further responses to Nos. 2 and 15 is granted.

The information requested by M-SROG No. 16 is not discoverable.

No. 16 asked the defendant to "identify" all bank accounts owned or controlled by him or Flame from which payments were made in connection with the underlying contract. The defendant objected in his June 10 Responses, claiming that the interrogatory seeks confidential financial and banking information, is overbroad, and is invasive of privacy.

The Court finds that the information requested by No. 16 is not discoverable as it is unclear what Plaintiff is requesting. The M-SROGs defined the word “identify” only in terms of people and documents. (Jadhavji Decl., Exh. C – a copy of the M-SROGs, p. 3:4-8 [“‘IDENTIFY’ when used with respect to a PERSON, means to state the full name, last known address, email address, all known telephone numbers, and employment position. When used with respect to a DOCUMENT, means to state the document’s author(s), recipient(s), date, title or description, and the name and address of the present custodian”]; see also id. at p. 2:16-18[“‘PERSON’ means any natural person, firm, association, organization, partnership, business, trust, limited liability company, corporation, or public entity”]; id. at p. 2:19-27 [“‘DOCUMENT’ means a writing, as defined in California Evidence Code § 250, and includes the original or copy of any hand-written, typed, printed, graphic, symbolic, photographic or otherwise recorded matter of any kind. This definition includes, but is not limited to: correspondence; letters; memoranda; notes; diary, journal, notebook, calendar and appointment book entries; records and transcripts of conversations and conferences, including telephone conversations; reports; contracts and agreements; invoices; financial statements; ledgers; tax returns; electronic mail; text messages; photographs; videotapes; and electronic data of any kind”].) A bank account is neither a document nor a person as defined by Plaintiff.

Therefore, the request to compel further response to M-SROG No. 16 is denied.

Mostashari’s response to M-SROG No. 18 is not straightforward.

No. 18 asked the defendant: “IDENTIFY all licenses, permits, or regulatory approvals YOU personally held or applied for in connection with the operation of W.L.A. FLAME INTERNATIONAL INC.’s establishment.” (June 10 Responses, p. 8:14:16.) Mostashari objected to the “interrogatory on the grounds it is vague as to time and overbroad as to whether it is in reference to the venture with Plaintiff or otherwise. Without waiving the foregoing objection, [he] contend[ed] that all permits and licenses required for the venture between Plaintiff and Defendants was Plaintiff’s obligation to maintain.” (Id. at p. 8:17-21.)

The Court agrees with the defendant that the interrogatory is overly broad because it is not limited to licenses, permits, or regulatory approvals relevant to the alleged venture between Plaintiff and the defendants.

Nevertheless, as stated above, Section 2030.220(a) requires responses to an interrogatory to be as complete and straightforward as the information reasonably available to the responding party permits.

Therefore, the request to compel further response to M-SROG No. 18 is granted.

Mostashari's response to M-SROG No. 20 is insufficient.

No. 20 asked the defendant to: "IDENTIFY all DOCUMENTS in YOUR possession, custody, or control relating to the negotiation, execution, performance, or termination of the CONTRACT." The June 10 Responses stated: "Please refer to Responding Party's document production."

Code of Civil Procedure section 2030.230 states: "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them."

Here, the defendant's June 10 Responses failed to specify the writings from which the answer to M-SROG No. 20 may be derived or ascertained.

Therefore, the request to compel further response to M-SROG No. 20 is granted.

For those reasons, the motion to compel Mostashari's further response to Plaintiff's Special Interrogatories (Set One) is granted in part and denied in part as follows. The request to compel further responses to Nos. 2, 15, 18, and 20 is granted. The motion is otherwise denied.

D.

Motion to Compel Mostashari to Serve
Further Responses to Requests for Admission

Plaintiff initially moved to compel Mostashari to serve further responses to Plaintiff's Requests for Admission (Set One) ("M-RFA"), Nos. 6, 7, 8, 10, 11, 12, 13, 15, and 16. (Notice of M-RFA Motion, p. 2:6-9.) Mostashari argues that Plaintiff's meet and confer did not raise any issues with his responses to the M-RFAs. (Opposition to M-RFA Motion, pp. 4:21-5:18.) In reply, Plaintiff disputes the meet and confer letter failed to identify Plaintiff's issues with the defendant's responses and argues that further responses should be compelled.

Plaintiff did not meet and confer regarding M-RFA Nos. 6, 7, 8, 10, 11, 15 and 16.

The Court finds that Plaintiff's meet and confer letter on March 2, 2026, only specified issues with M-RFA Nos. 12, 13, 14, and 19. (See Jadhavji M-RFA Decl., Exh.

A – a copy of the letter, p. 2, Section III ["Internally Inconsistent Responses: Mostashari admits the text messages with Yasen are authentic (RFA 19) and admits authorizing payments (RFA 14), yet claims Yasen was an 'unknown person' (RFAs 12-13) and 'lacks sufficient information' about his own text message (RFA 7). These positions are irreconcilable. Additionally, WLA Flame denies the text message (RFA 4) while Mostashari authenticates those same messages (RFA 19)"].)

Therefore, the request to compel further responses to Nos. 6, 7, 8, 10, 11, 15, and 16 is denied due to Plaintiff's failure to meet and confer regarding those M-RFAs. This leaves only Nos. 12 and 13 at issue.

The defendant's denials of M-RFA Nos. 12 and 13 were code-compliant.

No. 12 asked the defendant: "Admit that YOU knew at the time of contract execution that Maftah Yasen was the managing member of Giovani

Vetironi LLC.” (Jadhavji M-RFA Decl., Exh.

D – a copy of the M-RFA Responses, Responses to M-RFA Nos. 13 and 14.) The defendant responded: “Denied. Responding Party contends that Maftah Yassen was an unknown person and that Responding Party believed he was conducting business with Giovanni Vetironi.” (Ibid.) No. 13 asked the defendant: “Admit that all YOUR dealings under the CONTRACT were with Maftah Yassen.” (Ibid.) The defendant responded: “Denied. Responding Party contends that Maftah Yassen was an unknown person and that Responding Party believed he was conducting business with Giovanni Vetironi.” (Ibid.)

The Court finds the defendant’s denials were code compliant. (See Code Civ. Proc., § 2033.220, subd. (b) [“Each answer shall: [¶] (1)

Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2)

Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge”].) The fact that his denials may contradict another party’s responses or his own responses does not make his definitive denials to Nos. 12 and 13 not code-compliant.

Therefore, the request to compel further responses to M-RFA Nos. 13 and 14 is denied.

For the reasons set forth above, the motion to compel Mostashari’s further responses to Plaintiff’s Requests for Admission (Set One) is denied in its entirety.

E.

Motion to Compel Flame to Serve
Further Requests for Admission

Plaintiff initially moved to compel Flame to serve further responses to Plaintiff’s Requests for Admission (Set One) (“F-RFA”), Nos. 4, 5, 6, 7, 8, 9, 17, 21, 22, 25, 26, and 28.

Flame argues that on May 28, 2026, it served verified responses to the F-RFAs. (Opposition to F-RFA Motion, p. 6:12-13.) Plaintiff has not filed a reply disputing that fact or arguing that the supplemental

responses were insufficient.

Therefore, the motion to compel Flame's further responses to Plaintiff's Requests for Admission (Set One) is denied in its entirety.

F.

Motion to Compel Flame to Serve

Further Responses to Special Interrogatories

Plaintiff initially moved to compel Flame to serve further responses to Special Interrogatories (Set One) ("F-SROG"), Nos. 1 through 25. (Notice of F-SROG Motion, p. 2:6-9.) Flame served supplemental responses to the F-SROGs on May 29, 2026. (Opposition to F-SROG Motion, p. 6:12-14; Tehrani Decl., ¶ 9; Exh. A – a copy of the supplemental responses.) In reply, Plaintiff argues that the supplemental responses to F-SROG Nos. 3, 9, 10, 16, 18, 21, 22, 23, 24, and 25 remain deficient. (Reply, p. 7:13-17.)

Flame's response to F-SROG No. 3 is insufficient.

No. 3 asked Flame to state whether it received a draft contract in or around November 2023 that identified "Giovannie Vetironi LLC d/b/a Vida Loca Entertainment" as the contracting party. The defendant's supplemental responses only state: "Moe Mostashari sent a contract to Plaintiff in November 2023."

That response does not answer the question asked and, therefore, insufficient.

Therefore, the request to compel further response to F-SROG No. 3 is granted.

Flame's response to F-SROG No. 9 is insufficient.

No. 8 asked the defendant to: "State the name, address, and relationship of every person to whom You issued payment under the CONTRACT." The defendant stated in its supplemental response: "Giovanni Vetironi LLC, Plaintiff." Therefore, the F-SROG at issue (No. 9) asked: "For each payment made, state the date, amount, payee name, check number, and purpose." Flame responded: "Responding Party provides all paystubs in its possession demonstrating payments made to Giovanni Vetironi LLC. See Responding Party's Document

Production P. 00075-00084.”

Plaintiff argues that the response to F-SROG No. 9 is insufficient because: “[Code of Civil Procedure] Section 2030.230's option to product writings requires ‘a specification of the writings from which the answer may be derived ... in sufficient detail to permit the propounding party to locate and to identify’ them. A bare bates range is not a substantive answer.” (F-SROG Motion Reply, pp. 2:26-3:2.)

The Court finds Flame's response to SROG No. 9 was not code-compliant. Section 2030.230 allows a response to an interrogatory to refer to a writing only if (1) “the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed ...,” and (2) “if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party” Flame has not shown that was the case with regard to F-SROG No. 9. Second, the statute requires the specification of the writing to “be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.” Here, Flame fails to specify which writings within the documents produced answer the interrogatory's request for the “purpose” of the payments.

Therefore, the request to compel further response to F-SROG No. 9 is granted.

Flame's response to F-SROG No. 10 is insufficient.

No. 10 asked the defendant to state whether it “issued IRS Form 1099-NEC or other tax documents.” The defendant only answered that it does not recall, which is insufficient. (See Code Civ. Proc., § 2030.220, subd. (c) [requiring that “[i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party”].)

Therefore, the request to compel further response to F-SROG No. 10 is granted.

Flame's response to F-SROG No. 16 is evasive.

No. 16 asked the defendant to identify "all permits or licenses relating to hookah or tobacco services." The defendant responded that the "interrogatory ... seek confidential regulatory records, information already in Plaintiff's possession, custody or control, and/or information readily available to Plaintiff via third party sources."

The Court finds Flame's response evasive and that it fails to comply with Section 2030.2020 because it is unclear whether or not the defendant knows of the permits or licenses being requested in No. 16. To the extent the defendant does, the defendant is required to identify such documents. Flame's confidentiality objection is unpersuasive; the interrogatory is not requesting the production of the permits or licenses, but only the identification of them, which is proper. (Cf. *Smith v. Superior Court In and For San Joaquin County* (1961) 189 Cal.App.2d 6, 12 ["It would seem if documents are discoverable ..., and are not privileged, a preliminary interrogatory to ascertain the existence of such documents would be proper. ... [For example, where a privilege objection is asserted] only the contents could be privileged not the fact of the document's existence"].)

Therefore, the request to compel further response to F-SROG No. 16 is granted.

Flame's response to F-SROG No. 18 is sufficient.

No. 18 asked the defendant to state whether it "operated hookah services during the term of the contract" at issue in this. The defendant responded: "Responding Party objects to this request as to validity of the contract and therefore any timeline of reference is vague and ambiguous. Subject to and without waiving the foregoing objections, Responding Party provides that Plaintiff sold hookah as part of his operations at the premises. Plaintiff was responsible to make sure his sales were permitted."

The Court finds that response sufficient since Plaintiff failed to define what it meant by the "term of the contract."

The request to compel further response to F-SROG No. 18 is denied.

Flame's right to privacy objections to F-SROG Nos. 21 and 22 are outweighed by Plaintiff's right to discovery.

Nos. 21 and 22 asked the defendant to state its gross revenue from December 1, 2023, through April 2024 (No. 21) and total revenue generated through hookah or bottle service (No. 22).

Plaintiff argues in reply: "Objection only on 'confidentiality' grounds. Flame is a corporation. California has long recognized that corporations do not possess the same constitutional privacy rights as natural persons, and any corporate confidentiality interest must be balanced against the relevance of and need for the discovery. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552–557; *Roberts v. Gulf Oil Corp.* (1983) 147 Cal.App.3d 770, 791–795.) The information is directly relevant to damages and to Flame's own contention that Plaintiff caused the 'collapse' of its hookah business (see Supp. Resp. No. 11)." (F-SROG Motion Reply, p. 3:13-20.)

"While corporations do have a right to privacy, it is not a constitutional right. The corporate right to privacy is a lesser right than that held by human beings and is not considered a fundamental right." (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 756.) "Because the corporate privacy right is not constitutionally protected, the issue presented in determining whether [discovery requests] ... infringe that right is resolved by a balancing test. The discovery's relevance to the subject matter of the pending dispute and whether the discovery "appears reasonably calculated to lead to the discovery of admissible evidence" is balanced against the corporate right of privacy." (Ibid.)

The Court finds that the discovery requested by Plaintiff appears reasonably calculated to lead to the discovery of admissible evidence. Plaintiff's SAC alleges that the parties entered into the contract at issue on or about December 1, 2023, in which they agreed that Plaintiff had the exclusive rights to provide hookah service and all other products within Flame's establishment. (SAC, ¶¶ 20, 23.) The SAC further alleges that despite Plaintiff successfully generating revenue of \$266,000 under the contract, the defendants attempted to prematurely and unilaterally terminate the contract in April 2024. (SAC, ¶¶ 2, 27.) "Defendants' actions constitute[d] a clear and material breach of the Contract" (SAC, ¶ 29.) In turn, the defendant's FAXC alleges, among other things, that Plaintiff was unjustly enriched as a result of the contract, and had engaged in illegal and unlicensed business operations.

(FAXC, ¶¶ 71, 80.) Given those allegations, F-SROG Nos. 21 and 22's request for gross revenue generated between December 1, 2023, through April 2024, and for hookah and bottle service is relevant.

The Court finds the defendant's right to privacy in that information is outweighed by Plaintiff's right to discovery of relevant information.

Therefore, the request to compel further response to F-SROG Nos. 21 and 22 is granted.

Flame's response to F-SROG No. 23 was sufficient.

No. 23 asked the defendant to identify "all persons who performed promotional services other than Plaintiff." Flame objected on the ground that the interrogatory "seeks confidential third-party business information."

The Court sustains Flame's objection, and Plaintiff's reply does not convince the Court otherwise. (See F-SROG Motion Reply, p. 3:21-22 [arguing only that "Objection only on third-party 'confidentiality' grounds, again unaccompanied by any factual showing"].)

Therefore, the request to compel further response to F-SROG No. 23 is denied.

Flame's privileged objection to F-SROG No. 24 is sustained.

The SAC's second cause of action alleges that the defendants materially breached the parties' contract by failing to participate in contractually required mediation and arbitration process. (SAC, ¶¶ 30-32, 56.) Therefore, F-SROG No. 24 asked the defendant to state all fact supporting its refusal to participate in mediation or arbitration.

The defendant objected on the ground that the interrogatory seeks "legal conclusions and privileged strategy."

While it is proper for an interrogatory to ask for the existence or identification of documents that are privileged or subject to

other protections, it is a different matter entirely to seek the contents of those documents. (See *Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 293 ["In short, a responding party may object to an interrogatory that seeks privileged information by clearly stating the objection and the particular privilege invoked. But the existence of a document containing privileged information is not privileged. [Citations] Interrogatories may be used to discover the existence of documents in the other party's possession. [Citation.] If an interrogatory asks the responding party to identify a document, an adequate response must include a description of the document. [Citation.] Thus, we agree with petitioners that a 'privilege log' is unnecessary with regard to answering interrogatories seeking the identification of documents" (italics in original)]).) Here, FR-SROG No. 24 seeks privileged information.

Therefore, the request to compel further response to F-SROG No. 24 is denied.

Flame's response to F-SROG No. 25 is not code-compliant.

No. 25 asked Flame to identify all documents or communications referring to Plaintiff as "Giovani Vetironi LLC." Flame only responded: "Refer to Responding Party's Document Production p. 00075-00084."

The Court agrees with Plaintiff that Flame's response to No. 25 was not code-compliant for the same reasons the Court has found the same with regard to No. 9 above.

Therefore, the request to compel further response to F-SROG No. 25 is granted.

For the reasons set forth above, the motion to compel Flame's further responses to Plaintiff's Special Interrogatories (Set One) is granted in part and denied in part as follows. The request is granted as to Nos. 3, 9, 10, 16, 21, 22, and 25. The motion is otherwise denied.

G.

Motion to Compel Flame to Serve
Further Responses to Requests for Production of Documents

Plaintiff initially moved to compel Flame to serve further responses to Requests for Production of Documents (Set One) ("F-RPD"),

Nos. 1 through 25. (Notice of F-RPD Motion, p. 2:7-9.) Flame served supplemental responses to the F-RPDs on May 29, 2026. (Opposition to F-RPD Motion, p. 7:13-14; Tehrani Decl., ¶ 9; Exh. A – a copy of the supplemental responses.) In reply, Plaintiff argues that the supplemental responses to F-RPD Nos. 5, 9, 10, 12, 13, 14, 15, 18, 19, 20, 21, and 22 remain deficient. (Reply, p. 7:13-17.)

F-RPD No. 5 seeks privileged tax information.

The request asked the defendant to produce: “All IRS Forms 1099, 1099-NEC, or other tax documents issued in connection with the CONTRACT.” Flame objected to the F-RPD as asking for “confidential tax records beyond what is relevant or proportional,” and, without waiving that objection, stated that it does not recall issuing the tax forms. In its reply, Plaintiff argues that it is insufficient for the defendant to claim that it does not recall. (F-RPD Motion Reply, p. 2:20-28.)

Tax returns are the subject of a statutory privilege against forced disclosure. (See *Webb v. Standard Oil Co. of Cal.* (1957) 49 C.2d 509; *Schnabel v. Superior Court* (1993) 5 C.4th 1117, 719-720 (*Schnabel*) (collecting cases).)

“The privilege is not absolute... the privilege is waived or does not apply in three situations: “(1) there is an intentional relinquishment (*Crest Catering Co. v. Superior Court* (1965) 62 Cal.2d 274, 278), (2) the 'gravamen of [the] lawsuit is so inconsistent with the continued assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived' (*Wilson v. Superior Court*, *supra*, 63 Cal.App.3d at p. 830), or (3) a public policy greater than that of confidentiality of tax returns is involved (*Miller v. Superior Court*, *supra*, 71 Cal.App.3d at p. 149).” (*Schnabel*, *supra*, 5 C.4th at 721.) “A trial court has broad discretion in determining the applicability of a statutory privilege.” (*Weingarten v. Superior Court* (2002) 102 C.A.4th 268 (*Weingarten*).) The third exception requires the court to balance the strength of the public policy in favor of tax return confidentiality against other public policies at play in any given case. The exception “is narrow and applies only “when warranted by a legislatively declared public policy.”” (*Weingarten*, *supra*, 102 C.A.4th at 274 (quoting *Schnabel*, *supra*, 5 C.4th at 721.)

Here, Plaintiff has not shown that any of the three situations above apply to the tax documents requested.

Therefore, the request to compel further response to F-RPD No. 5 is denied.

F-RPD No. 9 is overly broad.

The Court sustains Flame's overbroad objection to No. 9, which requested all documents relating to any hookah services provided at its establishment from January 2023 to the present.

Therefore, the request to compel further response to F-RPD No. 9 is denied.

Flame's response to F-RPD No. 10 is insufficient.

The RPD asked the defendant to produce all permits, licenses, or regulatory approvals relating to hookah or tobacco services. Flame responded: "Responding Party objects to this Request to the extent it seeks confidential regulatory materials. Subject to and without waiving this objection, Responding Party responds as follows: Plaintiff should have possession of all such documents as pertaining to the alleged contract."

The Court finds Flame's objection is unclear, and the alternative response is not code compliant with Code of Civil Procedure section 2031.210, subdivision (a), which requires a responding party to state that it either: (1) will comply with the particular demand, or (2) lacks the ability to comply with the demand.

Therefore, the request to compel further response to F-RPD No. 10 is granted.

Plaintiff has failed to show good cause justifying further response to F-RPD No. 12.

The request asked the defendant to produce all documents "relating" to compliance with Los Angeles Municipal Code § 46.90.1. The defendant responded that the request was vague and sought legal conclusions. In its reply, Plaintiff disputes that contention, arguing that

"Flame's own supplemental responses to Special Interrogatory No. 11 rely on LAPD/regulatory enforcement as the central justification for terminating the contract; documents reflecting that compliance are squarely relevant." (F-RPD Motion Reply, p. 3:14-16.)

A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

Here, Plaintiff has failed to do so as to F-RPD No. 12. The Court also finds the request vague as it is unclear what Plaintiff meant by documents "relating to compliance" with the ordinance.

Therefore, the request to compel further response to F-RPD No. 12 is denied.

Flame's privacy objections to F-RPD Nos. 13 and 14 is overruled.

No. 13 asked Flame to produce: "All financial records showing gross revenue generated at YOUR establishment from December 1, 2023 through April 2024." No. 14 asked for financial records showing revenue generated through hookah or bottle services from December 1, 2023, through April 2024. Flame responded: "Responding Party objects to this Request as overbroad, confidential, commercially sensitive, and subject to privacy rights."

The Court finds the F-RPDs are not overly broad as they are limited to the period Plaintiff's SAC alleges the contract at issue in this case was executed and breached. The Court also finds Flame's privacy concerns are outweighed by Plaintiff's right to discover relevant information.

Nevertheless, Plaintiff is not entitled to financial records that do not pertain to the services it rendered for the defendant.

Therefore, the request to compel further response to F-RPD Nos. 13 and 14 is granted, but limited to financial records showing revenue from the services that Plaintiff rendered under the contract at issue in this case.

Flame's overbroad and privacy objections to F-RPD No. 15 are sustained.

F-RPD No. 15 asked Flame to produce: "All contracts or agreements with other promotional service providers from January 1, 2023 to the present." The defendant responded: "Responding Party objects to this Request as overbroad, confidential, commercially sensitive, and subject to privacy rights."

The Court sustains Flame's overly broad and privacy objections, and finds Plaintiff has failed to show good cause for justifying production of documents responsive to No. 15.

Therefore, the request to compel further response to F-RPD No. 15 is denied.

Flame must produce a privilege log in response to F-RPD No. 18.

No. 18 asked Flame to produce all documents reflecting communications with its attorney or any third party concerning this lawsuit. Flame objected on the grounds of attorney-client privilege and work product doctrine.

The Court agrees with Plaintiff that Flame must produce a privilege log in response to No. 18. (See *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 ["A privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. [Citations.] The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances.

In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the

privilege applies, and the precise privilege or protection asserted”].)

Therefore, the request to compel further response to F-RPD No. 18 is granted.

Flame’s response to F-RPD Nos. 19 and 20 is insufficient.

No. 19 asked the defendant to produce: “All photographs, videos, or other media depicting hookah services from December 1, 2023 to the present.” No 20 asked for: “All marketing or promotional materials referencing hookah, Vida Loca Entertainment, or similar services.” Flame provided the following, same response to those F-RPDs: “Responding Party objects to this Request as vague and overbroad and that such documents are in Plaintiff’s possession.”

The Court finds the objections meritless, and agrees with Plaintiff that the defendant’s responses were not code compliant. (See Code Civ. Proc. 2031.210, subd. (a) [requiring the a response to state any of the following: “(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities. [¶] (2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item. [¶] (3) An objection to the particular demand for inspection, copying, testing, or sampling.”

Therefore, the request to compel further responses to F-RPD Nos. 19 and 20 is granted.

Flame’s response to F-RPD Nos. 21 and 22 is insufficient.

Nos. 21 and 22 asked Flame to produce its articles of incorporation, bylaws, operating agreements, and amendments (No. 21), and all documents identifying officers, directors, shareholders, or owners from January 1, 2023 to the present (No. 22). Plaintiff objected on the ground that the requests sought confidential ownership or governance information beyond what was relevant. Plaintiff argues that those documents “go to who actually owns and operates [Flame] – directly relevant given that the identity of the contracting parties is central to this case.” (F-RPD Motion Reply, p. 4:17-19.)

The Court finds Plaintiff has failed to “set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Specifically, Plaintiff fails to cite to the allegations in the pleadings showing that the identity of the defendants is in dispute, and explain how the documents requested in the F-RPDs are relevant to prove that fact.

Therefore, the request to compel further response to F-RPD Nos. 21 and 22 is denied.

For the reasons set forth above, the motion to compel Flame’s further responses to Plaintiff’s Requests for Production of Documents (Set One) is granted in part and denied in part. The request to compel further responses to Nos. 10, 13 (as limited in this ruling), 14 (as limited in this ruling), 18, 19, and 20 is granted. The motion is otherwise denied.

Conclusion

The motion to compel Defendant Mostashari’s further response to Plaintiff’s Special Interrogatories (Set One) is GRANTED IN PART and DENIED IN PART as follows. The request to compel further responses is GRANTED as to Nos. 2, 15, 18, and 20. The motion is otherwise DENIED.

The motion to compel Defendant Mostashari’s further responses to Plaintiff’s Requests for Admission (Set One) is DENIED in its entirety.

The motion to compel Defendant Flame’s further responses to Plaintiff’s Requests for Admission (Set One) is DENIED in its entirety.

The motion to compel Defendant Flame’s further responses to Plaintiff’s Special Interrogatories (Set One) is GRANTED IN PART and DENIED IN PART as follows. The request is GRANTED as to Nos. 3, 9, 10, 16, 21, 22, and 25. The motion is otherwise DENIED.

The motion to compel Defendant Flame’s further responses to Plaintiff’s Requests for Production of Documents (Set One) is GRANTED IN PART and DENIED IN PART. The request to compel further responses is GRANTED as

to Nos. 10, 13 (as limited in this ruling), 14 (as limited in this ruling), 18, 19, and 20. The motion is otherwise DENIED.

Defendants are ordered to serve further, code-compliant responses consistent with this ruling within 30 days.